

Uma Choudhary vs Aditya Choudhary And Ors on 11 July, 2024

OD-35

IN THE HIGH COURT AT CALCUTTA
(ORDINARY ORIGINAL CIVIL JURISDICTION)
ORIGINAL SIDE

G.A. No. 1 of 2024

In

C.S. No. 167 of 2024

UMA CHOUDHARY

-VS-

ADITYA CHOUDHARY AND ORS.

BEFORE:

The Hon'ble JUSTICE KRISHNA RAO

Dated: 11.07.2024

Appearance:

Mr. Nirmalya Dasgupta, Adv.
... For the petitioner/plaintiff.

ORDER

1. The plaintiff has filed the present application for grant of ad-interim order. The plaintiff is the second wife of the deceased Prabhu Nath Choudhary. Prabhu Nath Choudhary died intestate on 8th October, 2022. From the first marriage of Parbhu Nath Choudhary, three children were born i.e. defendant nos. 1, 2 and 3. After the marriage with Prabhu Nath Choudhary, the plaintiff has started residing with her husband at the residential flat Nos. 602 and 702 at 1, Wood Street, Kolkata. After the death of her husband, the plaintiff counted to stay in the said residential flats.

2. The husband of the plaintiff during his life time purchased and acquired several assets, properties and incorporated, promoted and acquired several companies, established diverse business, made investment in shares, bonds, mutual funds, provident funds etc. and was running and managing several business. The defendant no.4 is the HUF formed by Prabhu Nath Choudhary wherein he was the Karta during his life time and after his demise, the defendant no.1 became the Karta by

operation of law. The plaintiff being the widow of the Prabhu Nath Choudhary is entitled 50% of the total properties and assets of the defendant no.4. The defendant no.5 is a closely held family owned and controlled private limited company which deals in sarees, fabrics, dresses, garments, textiles goods etc. The plaintiff, defendant no. 1 and defendant no.3 are the Directors of the said company.

3. The defendant no.5 in addition to carrying on business has acquired several properties as mentioned in paragraph 14 of the present application. The defendant no.6 is another family owned and controlled private limited company and carries on the business of sarees, garments, fabrics, textiles and investment in shares and securities etc.

4. The plaintiff, defendant no.1 and defendant no.3 are the Directors of the said company. In the name of the respondent no.6 company, the husband of the plaintiff in addition to other assets also purchased and acquired several properties as mentioned in paragraph 17 of the present application. The defendant no.7 is also a private limited company carries the business of restaurant under the name and style of "Bombay Shiv Sagar" in which the husband of the plaintiff has acquired 65000 fully paid equity shares of Rs.10/- each representing 16.67% of total issued, subscribed and paid up share capital of the defendant no.7 through the defendant no.6.

5. The husband of the plaintiff purchased, acquired, seized and possessed several valuable properties in his personal name as well as in the name of HUF and in the name of family owned and controlled companies as described in paragraph 21 of the instant application.

6. Mr. Nirmalya Dasgupta, Learned Advocate representing the plaintiff submits that after the demise of the husband of the plaintiff, the defendant nos. 1, 2 and 3 have started creating pressure upon the plaintiff to vacate the residential flats wherein at present the plaintiff is residing and also to resign from Board of Directors of the defendant no.6 company. He submits that the defendant nos. 1 to 3 have also made complaint against the plaintiff before the CESE for disconnection of the electric connection to the residential flats of the plaintiff.

7. The defendant no.1 also issued a notice to the plaintiff on the letter head of the respondent no.5 to vacate the Flat No. 702, 7th Floor at 1, Wood Street, Kolkata - 700016 where the plaintiff is residing. The defendants have also initiated a criminal case against the plaintiff under Section 452(2) of the Companies Act, 2013 for creating pressure upon the plaintiff to vacate the Flat No. 702.

8. Mr. Dasgupta submits that the plaintiff has made several requests to the defendant nos. 1, 2 and 3 for providing details of the bank accounts, lockers and other assets lying in the name of her husband but the defendant nos. 1 to 3 have not provided the same to the plaintiff. He submits that the plaintiff came to know that the defendant nos.1 to 3 have purchased several properties and assets and also built up several other business out of the funds of the family business.

9. Mr. Dasgupta further submitted that the plaintiff came to know that the defendants are taking steps to sale or dispose of several properties and assets of the deceased Prabhu Nath Choudhary or in the name of defendant nos. 4 to 7.

10. Heard the Learned Counsel for the plaintiff and perused the materials on record. The plaintiff is the wife of the deceased Prabhu Nath Choudhary. The deceased had left behind several movable and immovable properties. After the death of the husband of the plaintiff, the defendant nos. 1, 2 and 3 have started creating pressure upon the plaintiff to resign from the post of Director of the respondent no.6 company and have also creating pressure to vacate the premises wherein the plaintiff is residing since during the life time of her husband. The defendants have also initiated a complaint case against the plaintiff to vacate the Flat No.702.

11. The plaintiff has filed the suit for partition of the suit properties. The plaintiff is the wife of the deceased Prabhu Nath Choudhary. Admittedly, the plaintiff being the wife of the deceased is entitled to get her share in the suit property left behind by her husband. Admittedly, the property left behind by her husband has not been divided amongst the legal heirs of the deceased. From the documents relied by the plaintiff, it reveals that the defendants are threatening the plaintiff to vacate the Flat wherein the plaintiff is residing since during the life time of her husband. The defendant nos.1, 2 and 3 have also initiated a case under the Companies Act, 2013, for a direction upon the plaintiff to vacate the flat.

12. Considering the above facts and circumstances, this Court finds that the plaintiff has made out a prima facie case against the defendants and balance of convenience and inconvenience are in favour of the plaintiff. This Court finds that if at this stage, an ad-interim order is not granted to the plaintiff, the plaintiff will suffer irreparable loss and injury.

13. In view of the above, the defendants, their men, agents, servants and nominees are restrained from interfering with the possession of the plaintiff over the residential flat and also restrained from alienating any of the suit schedule property till 14th August, 2024.

14. The plaintiff is directed to serve the copy of plaint, application and documents to the defendants and to file affidavit of service on the returnable date.

15. List the matter on 13th August, 2024.

(KRISHNA RAO, J) p.d/-